The Aparna Institution (Taking over of Management and Control) Act, 2025

Act No. 24 of 2025

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PART - I

HARYANA GOVERNMENT

LAW AND LEGISLATIVE DEPARTMENT

Notification

The 20th November, 2025

No. Leg.29/2025.— The following Act of the Legislature of the State of Haryana received the assent of the President of India on the 27th August, 2025 and is hereby published for general information:-

HARYANA ACT NO. 24 OF 2025

THE APARNA INSTITUTION (TAKING OVER OF MANAGEMENT AND CONTROL) ACT, 2025

AN

ACT

to provide for the taking over, in the public interest, for a limited period, for proper and efficient management and control of Aparna Institution situated within the revenue estate of Village Silokhra, District Gurugram, falling within the territorial jurisdiction of the State of Haryana, and for matters connected therewith and incidental thereto.

Be it enacted by the Legislature of the State of Haryana in the Seventy-sixth Year of the Republic of India as follows:-

Short title and commencement.

1. (1) This Act may be called the Aparna Institution (Taking Over of Management and Control) Act, 2025.

(2) It shall come into force on the date of its publication in the Official Gazette.

Definitions.

2. In this Act, unless the context otherwise requires,-

(a) "Administrator" means the Administrator appointed by the Government under section 5;

(b) "appointed day" means the date of publication of this Act in the Official Gazette;

(c) "Government" means the Government of the State of Haryana;

(d) "Institution" means Aparna Institution situated at Village Silokhra, Tehsil Wazirabad, District Gurugram, Haryana;

(e) "property" means the land ad-measuring 24 acres 16 marlas situated within the revenue estates of Village Silokhra, Tehsil Wazirabad, District Gurugram, Haryana and all the buildings existing thereon, and all other properties of whatever nature as form part of, or are relatable to the Institution and all other rights and interests arising out of such properties;

(f) "prescribed" means prescribed by the rules made under this Act;

(g) "Society" means Aparna Ashram Society (Registration No. S-5766 of 1973-74) registered under the Societies Registration Act, 1860 (Central Act 21 of 1860) having its registered office at A-50, Friends Colony, Mathura Road, New Delhi.

Vesting of management and control of Institution in Government.

3. On and from the appointed day and for a period of ten years thereafter, the management, control and possession of the property of the Institution and as was immediately before the appointed day under the management and control of the authority/governing council of the Institution by whatever name called shall vest in the Government, and all persons responsible for the management and control of the business and affairs of the Institution immediately, before the appointed day, shall cease to exercise such control and management and shall be deemed to have vacated their offices as such:

Provided that if the Government is of the opinion that in order to secure the proper and efficient management of Institution and its further development after the expiry of the said period of ten years, it may, issue directions for the continuance of such management for such period, not exceeding five years, at a time, as it may think fit.

Overriding effect.

4. Notwithstanding anything contained in any other law for the time being in force in the Memorandum of Institution,-

(a) on and from the appointed day, every member of the Authority/Governing Council of the Institution, by whatever name called, shall cease to exercise any powers whatsoever of management and control in relation to the Institution;

(b) it shall not be lawful for the members of the Authority/Governing Council of the Institution by whatever name called or any other person to nominate or appoint any person to look after the management and control of the Institution in any manner whatsoever or its property of whatever nature as form part of, or are relatable to the Institution and all other rights and interests arising out of such property;

(c) no resolution in relation to the Institution passed by the members of the Authority/Governing Council of the Institution by whatever name called shall be given effect;

(d) no proceedings for the dissolution of the Institution or merger of the Society with any other Institution or for the appointment of a receiver in respect of any asset forming part of, or relatable to the Institution, the management and control of which has vested in the Government under section 3, shall lie in any court except with the written consent of the Government.

Administrator and his powers.

5. (1) The Government shall, as from the appointed day, appoint a person as the Administrator, in such manner, having such qualifications and experience, as may be prescribed for the purposes of carrying on the management of the Institution for and on behalf of the Government.

(2) The Administrator so appointed, notwithstanding anything contained in the Societies Registration Act, 1860 (Central Act 21 of 1860) or any other law for the time being in force, shall in relation to the Institution exercise the powers of the Authority/Governing Council, by whatever name called.

(3) The Administrator may, from time to time, shall take instructions from the Government as to the manner in which he shall conduct the management of the Institution or in relation to any other matter including its further development arising in the course of such management.

(4) The Administrator, with the prior written approval of the Government, may appoint any person(s) for the conduct and management of the Institution. The person(s) so appointed shall exercise such powers of the Administrator in the same manner as has been conferred on that person(s) directly by this Act and not by way of authorization.

(5) The Administrator may delegate any of its powers to the person(s) appointed under sub-section (4) for the purposes of carrying out the management of the Institution for and on behalf of the Government.

(6) The Administrator shall have the power to institute, defend or take part in, any suit or legal proceedings by or against the Institution.

(7) The Administrator and any other person(s) appointed by him under this Act shall receive such remuneration, as may be prescribed.

Constitution of committee.

6. The Government, in order to ensure proper and efficient management and control of the Institution and for the assistance of the Administrator shall, constitute a committee, consisting of such persons, having such qualifications and experience, as may be prescribed.

Advance or grant by Government.

7. The Government may, on an application made by the Administrator or the committee, as the case may be, give grant or advance to the Institution, on such terms and conditions, as the Government may specify for the purposes of managing the business and affairs of the Institution and its further development.

Aims and objectives of Institution.

8. The Administrator with the assistance of the committee shall make every possible endeavour to achieve the following aims and objectives, namely:-

(i) to make yoga more popular through diffusion of useful knowledge of yoga among the masses through education, research, training and dissemination to enable the general public to regain health and vigour, to cure problems and the diseases which are curable by resorting to the practice of yoga;

(ii) to educate people the art and science of yoga in its manifold aspects particularly the higher stages of the same without distinction of any kind whatsoever;

(iii) to undertake and facilitate practical courses and training in the field of yoga and its application to the well-being and upliftment of humanity;

(iv) to educate people in the art of healthy living and in eradicating the injurious habits of consuming LSD (lysergic acid diethylamide) and other spurious drugs and drinks with a view to build a better society;

(v) to teach natural and simple methods of rescuing mental tensions and removing mental imbalance;

(vi) to create atmosphere for self-purity, universal brotherhood, peace and spiritual values and provide facilities and training for the same;

(vii) to organize conferences, lectures, seminars, tours and set up study-groups and training programmes;

(viii) to bring out books, various other publications and literature on yoga with a view to disseminate wider and deeper understanding of the same and to foster its acceptance as a way of life and as developed system;

(ix) to give assistance, fellowships, scholarship, stipend, or any other kind of benefit to any person, organization or Institution with a view to promote any of the objects of the Institution;

(x) to invite scholars to take advantage of the facilities offered by the Institution and/or to benefit the Institution by their knowledge and experience;

(xi) to constitute or cause to be constituted branches, centers, anywhere considered necessary for carrying out, attainment, or in furtherance of any of the objectives;

(xii) to issue appeals and make applications for money and funds for furtherance of the objectives and to accept gifts, donations and subscriptions in cash or kind;

(xiii) to assist or cooperate with or to seek assistance of cooperation from associations, institutions, societies etc. engaged in similar objects;

(xiv) to invest and deal with the advance, grant of money and any other amount received by the Institution in the manner, as may be prescribed;

(xv) to acquire, purchase, or otherwise own on lease or hire, temporarily, or permanently, any movable or immovable property, necessary or convenient for the furtherance of the objects of the Institution, and to maintain, cultivate or to raise construction on such land;

(xvi) to establish ashrams, yoga guest house, undertake agricultural and dairy farming, carry out gardening and plantation pursuits and to establish and maintain health resorts and swimming places;

(xvii) to construct, maintain, alter, improve, or develop any building or works as may be necessary or contingent thereto;

(xviii) to borrow money on such terms, as considered necessary;

(xix) to look after the welfare and provide facilities as considered necessary for persons working with the Institution;

(xx) to do all such lawful acts as considered necessary and conducive to the attainment or furtherance of all or any of the objective.

Delivery of possession of property.

9. (1) Every person having, on the appointed day, in his possession, custody or control any property(s) forming part of, or relatable to the Institution, shall deliver forthwith such property(s) to the Administrator or to any officer or other employee of the Government, as may be authorised by the Government in this behalf.

(2) Any person who has, on the appointed day, in his possession or under his control, any book, paper or other documents relating to the Institution (including the minute books containing resolutions in relation to Institution) adopted by persons in charge of the management of the Institution before the appointed day, the current cheque books relating to the Institution, any letters, memorandum, notes and other communication between him and the Institution shall, notwithstanding anything contained in any other law for the time being in force, be liable to account for the books, papers and other documents (including such minute books, cheque books, letters, memorandum, notes and other communications), to the Administrator or to such other person (being an officer or other employee of the Government), as may be authorised by the Government in this behalf.

(3) Every person in charge of the management of the Institution immediately before the appointed day shall, within seven days from that day or within such further period as the Government may allow in this behalf, furnish to the Administrator, a complete inventory of all the properties and assets (including particulars of donations received, book of accounts, investments and belongings) forming part of, or relatable to the Institution immediately before the appointed day and all liabilities and obligations of the Society in relation to the Institution subsisting immediately before that day and also of all agreements entered into by the Society in relation to the Institution and in force immediately before the appointed day.

Contracts, transfers etc. in bad faith may be cancelled or varied.

10. (1) If the Government is satisfied, after such inquiry, as it may think fit, that any contract, transfer, lease, agreement or any other arrangement entered into at any time in relation to the Institution with any other person, in so far as such contract, transfer, lease, agreement or any other arrangement relates to the management of the Institution, has been entered into in bad faith, or is detrimental to the interests of the Institution, it may make an order cancelling or varying (either unconditionally or subject to such conditions, as it may think fit to impose) such contract, transfer, lease, agreement or any other arrangement and thereafter, the contract, transfer, lease, agreement or any other arrangement shall have effect accordingly:

Provided that no contract or agreement shall be cancelled or varied except after giving to the parties to the contract or agreement a reasonable opportunity of being heard.

(2) Notwithstanding anything contained in any law for the time being in force, no person in respect of whom any contract, transfer, lease, agreement, or other arrangement is terminated under sub-section (1), shall be entitled to claim any compensation for the premature termination of such transfer, lease, agreement, or other arrangement.

Offences and penalties.

11. Any person who-

(a) having in his possession or custody or control any asset or property forming part of, or relatable to the Institution, wrongfully withholds such asset or property from the Administrator or any person authorised under this Act; or

(b) wrongfully obtains possession of any such asset or property forming part of, or relatable to the Institution; or

(c) wilfully retains any asset or property forming part of, or relatable to the Institution, or remove or destroy it; or

(d) wilfully withholds or fails to deliver any books, papers or other documents relatable to the Institution which may be in his possession or custody or under his control, to the Administrator or any person authorised under this Act; or

(e) fails, without any reasonable cause, to furnish any inventory of properties and assets as provided in sub-section (3) of section 9,

shall be punishable with imprisonment for a term which may extend to five years, or with fine which may extend to fifty thousand rupees, or with both.

Offences by companies.

12. (1) Where an offence under this Act has been committed by a company, every person who, at the time the offence was committed, was in charge of, and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other employee of the company, such director, manager, secretary or other employee shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.- For the purposes of this section,-

(a) "company" means any body corporate and includes a firm or other association of individuals; and

(b) "director" in relation to a firm, means a partner in the firm.

13. No suit, prosecution or other legal proceeding shall lie against the Government, any of its officer or other employee, the Administrator or any person authorised under this Act for anything, which is done or intended to be done in good faith.

Protection of action taken in good faith.

14. The provisions of this Act or any notification, order or rule made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any law other than this Act or in any instrument having effect by virtue of any law other than this Act or in any decree or order of any court.

Act to have overriding effect.

15. (1) The Government may, by notification, make rules to carry out the purposes of this Act.

(2) Every rule made under this Act shall be laid as soon as may be after it is made before the State Legislature.

Power to make rules.

16. (1) If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no order shall be made under this section after the expiry of two years from the date of commencement of this Act.

(2) Every order made under this section shall, as soon as may be after it is made, be laid before the State Legislature.

Power to remove difficulty.

RITU GARG,
ADMINISTRATIVE SECRETARY TO GOVERNMENT, HARYANA,
LAW AND LEGISLATIVE DEPARTMENT.

12230—L.R.—H.G.P., Pkl.